

**THE MAHARASHTRA REAL ESTATE REGULATORY AUTHORITY
MUMBAI.**

COMPLAINT NO: CC006000000056948.

Mr. Piyush Ashok kumar Raval

... Complainant.

Versus

M/s. Nirmal Lifestyle Kalyan Pvt Ltd

... Respondents.

MahaRERA Regn: P51700003616.

(Lifestyle City Kalyan – Thames)

Coram: Shri B.D. Kapadnis,
Member-II.

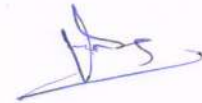
Appearance:

Complainant: In person.

Respondents: Adv. Mr. Tushar Kadam
a/w Ms. Vaishali Mohite.

FINAL ORDER
07th August, 2020.

The complainant contends that he booked flat No. 1602 in the respondents' registered project 'Thames A' in the year 2013 and paid them Rs. 9,02,784/-. He cancelled the booking on 15.10.2016 when the project could not make any progress. The respondents did not refund his money and after many persuasions the respondents issued four cheques for paying Rs. 9,02,784/- in total. The cheques were dated 13.06.2018, 12.07.2018, 13.08.2018 and 12.09.2018. When he presented the cheque payable in September, 2018, it bounced for want of funds. Therefore, the complainant contends that the respondents have indulged in unfair practice of issuance of cheques without balance in their account to defraud the creditor.



2. The respondents have not submitted any written reply, however, Adv. Shri. Kadam submits that the money was paid during 2013 - 2016, it is barred by limitation because the booking is cancelled on 15.10.2016 when the RERA was not in force. Therefore, he requests to dismiss the complaint.

3. I have given thought to the facts unfolded by the parties. It becomes clear that, the complainant paid Rs. 9,02,784/- to the respondents after booking the flat in the year 2013. Though he cancelled the booking on 15.10.2016, the respondents did not repay his amount. Thereafter in the year 2018, they have issued four cheques but the cheques were not honoured because of the insufficient funds in their bank account. Therefore, I find that the jural relation of the promoter and allottee continued till today i.e. even after RERA came into force as the transaction entered into by them still continues. The respondents issued four cheques but when the cheque was presented for encashment, it got dishonoured, it means that the respondents issued the cheques and made the complainant to believe that he would get his amount mentioned in cheques though they did not have the sufficient funds at their disposal. This is nothing but the unfair practice within Section 7 of the RERA. I find that the complainant's claim is well within limitation and the respondents are guilty of Section 7 as they have indulged in unfair practise. Respondents will have to refund complainants money with interest at prescribed rate. The prescribed rate of Interest is 2% above SBI's highest MCLR which is currently 7% p.a. He is entitled to Rs. 20,000/- towards the cost of the complaint. Hence, the following order.



ORDER

- A. The respondents shall refund the complainant's amount of Rs. 9,02,784/- with interest at the rate of 9% p.a. from 15.10.2016 till their refund.
- B. The respondents shall also pay Rs. 20,000/- to the complainant towards the cost of the complaint.
- c. The payment shall be subject to the period of moratorium specified by this Authority from time to time.
- D. The charge of the aforesaid amounts shall be on the booked flat till satisfaction of the complainant's claim.

Uploaded at Mumbai.

Date: 07.08.2020.


7.8.2020.
(B. D. Kapadnis)
Member-II,
MahaRERA, Mumbai.